

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
GEORGE BARNES,

Plaintiff,

-against-

Plaintiff designates
Queens County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK, NYPD OFFICER
DOUGLAS JOHN, and NYPD OFFICERS "JOHN"
FARLEY, "JOHN" SAVAL, AND "JOHN"
FRANCO, the first names being fictitious, and all of
whom were assigned to NYPD Transit District 20 on
November 4, 2018,

Defendants.
----- X

To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 21, 2020

Yours, etc.
SIVIN & MILLER, LLP

By 
Andrew C. Weiss
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007
-NYPD Officer Douglas John, c/o NYPD Transit District 20, 137 Queens Blvd, Jamaica, NY
11435

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
GEORGE BARNES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD OFFICER
DOUGLAS JOHN, and NYPD OFFICERS "JOHN"
FARLEY, "JOHN" SAVAL, AND "JOHN"
FRANCO, the first names being fictitious, and all of
whom were assigned to NYPD Transit District 20 on
November 4, 2018,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

2. That prior to the institution of this action a notice of claim and intention to sue
was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter "the NYPD").

4. That at all times herein mentioned, defendant NYPD Officer Douglas John (hereinafter "John") was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, defendant NYPD Officer "John" Farley (hereinafter "Farley") was and is employed as an officer with the NYPD.

6. That at all times herein mentioned, defendant NYPD Officer "John" Saval (hereinafter "Saval") was and is employed as an officer with the NYPD.

7. That at all times herein mentioned, defendant NYPD Officer "John" Franco (hereinafter "Franco") was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, John, Farley, Saval, and Franco (hereinafter "the defendants") were acting within the course and scope of their employment as an officer with the NYPD.

9. That at all times herein mentioned, defendants were acting under color of state law.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

11. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

12. That on November 4, 2018, at or around the Northern Boulevard subway station at Northern Boulevard and Broadway, Queens, NY, at approximately 8:00 a.m., defendants, without legal provocation, probable cause, reasonable suspicion, or justification, and without a warrant, stopped plaintiff, and without plaintiff's permission and consent, forcibly

grabbed and seized plaintiff, forcibly slammed plaintiff to the ground, punched, kicked, and otherwise used force against plaintiff that was not justified.

13. That following this initial seizure of plaintiff, defendants, without probable cause, forcibly confined and imprisoned plaintiff and/or caused plaintiff to be confined and imprisoned at various other locations, including East Elmhurst Hospital.

14. That the aforesaid actions by defendants were without legal provocation or justification, and were offensive and excessive under the circumstances.

15. That in support of justification for their actions, defendants made statements and filed police reports that were false and that they knew were false, including but not limited to, that defendants identified themselves as police officers during their interaction with plaintiff, that plaintiff endangered his own life, that plaintiff ignored commands allegedly issued to him by defendants, that plaintiff flailed his arms and resisted arrest, and that defendants did not knock plaintiff unconscious while using excessive force on him.

16. That the aforesaid actions by defendants were done intentionally and maliciously.

17. That as a result of the aforementioned actions by defendants, plaintiff sustained severe physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

18. That upon information and belief, prior to the events alleged herein defendants had used excessive force against and had falsely arrested, falsely imprisoned, and fabricated evidence by filing false reports, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

19. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that the defendants had used excessive force against and had falsely arrested, falsely imprisoned, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

20. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that the defendants were unfit to act as police officers.

21. That despite the City's and the NYPD's prior knowledge of defendants' unfitness and propensities, the City and the NYPD knowingly retained defendants as NYPD officers, thereby subjecting plaintiff to defendants' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST JOHN, FARLEY, SAVAL, and FRANCO
(Assault and Battery Under NY State Law)

22. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

23. That the aforesaid actions of the defendants constitute an assault and battery of plaintiff, for which the defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST JOHN, FARLEY, SAVAL, and FRANCO
(False Imprisonment Under NY State Law)

24. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

25. That the aforesaid actions of the defendants constitute a false imprisonment of plaintiff, for which the defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST JOHN, FARLEY, SAVAL, and FRANCO
(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations)

26. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

27. That the aforesaid actions by the defendants in using excessive force against and falsely imprisoning plaintiff constitutes unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforesaid actions by the defendants and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of the defendants.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim: Deliberate Indifference)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforesaid actions by defendants and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by the defendants in which the defendants violated the constitutional rights of citizens of the State of New York.

32. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against all defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against the defendants in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against both defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
January 21, 2020

Yours, etc.
SIVIN & MILLER, LLP

By 

Andrew C. Weiss
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

ANDREW C. WEISS, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff file maintained by your affirmant's office.

Dated: New York, New York
January 21, 2020



ANDREW C. WEISS

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Andrew C. Weiss hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



ANDREW C. WEISS

Dated: New York, New York
January 21, 2020